

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****INGRID WAGNER,**

Plaintiff,

-against-

**THE CITY OF NEW YORK, OFFICER
KEYANA KENDALL, OFFICER
CHANEL JONES,**

Defendants.

Index No.: 151886/2019

**AMENDED
COMPLAINT**

Plaintiff, by her attorneys, Rickner PLLC, complaining of the Defendants, respectfully alleges, upon information and belief and personal knowledge:

1. That all times relevant here, Plaintiff Ingrid Wagner resided in New York County. Plaintiff timely filed a notice of claim and appeared for a 50-h examination. The claim was not adjusted and more than 30 days have passed.

2. Defendant City of New York was and is a municipality that is a political subdivision of the State of New York, was the employer of the officer defendants, and is and was at all times relevant to this Complaint responsible for the policies, practices, and customs of the New York City Police Department ("NYPD").

3. Defendant Keyana Kendall was at all times relevant to this Complaint a duly appointed and acting officer of the NYPD, acting under color of law and in the officer's individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. This officer is sued in his individual capacity.

4. Defendant Keyana Kendall is entitled to indemnification under New York General Municipal Law Section 50-k and by contract.

5. Defendant Chanel Jones was at all times relevant to this Complaint a duly appointed and acting officer of the NYPD, acting under color of law and in the officer's individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. This officer is sued in his individual capacity.

6. Defendant Chanel Jones is entitled to indemnification under New York General Municipal Law Section 50-k and by contract.

7. New York County is the proper venue and New York is the proper jurisdiction because, at all relevant times, the acts complained of occurred in Manhattan, New York County, State of New York.

8. On November 22, 2017, Plaintiff was shopping in a Rite Aid, picking up medication and other items she needed. She was partway through shopping, and had a cart filled with things she planned on buying.

9. Plaintiff was 76 years old and has a titanium rod in her hip and thigh, which hurt when she walks for some time, and for which she was being treated by a physician. She liked to shop at this 24-hour Rite Aid later in the evening because it was less crowded. She has been shopping there since 2009, and it is where she fills her prescriptions. She sat down in a chair in the pharmaceutical waiting area of the Rite Aid, because she needed a rest, given that she had been walking for about 50 minutes already. She was just resting and catching her breath. She started talking with another customer, named Louis, who was on the blood pressure machine next to her.

10. In the middle of the conversation, a security guard, came over to Plaintiff and told her "you have to leave now." She and Louis asked what are you talking about? He said, "because you are a loiterer." She tried to explain that she was not a loiterer; rather she was a customer and was not finished shopping. The guard explained that they had a problem with vagrants because it was a 24-hour store. But the guard insisted on her leaving, although he was aware she was a customer, because he said he had seen her picking up her prescriptions and shopping. So Plaintiff asked him to call the manager to settle this issue. The manager appeared. But beforehand, it appears he called the police department, and falsely told the police that Plaintiff was a loiterer, because a team of police officers, Chanel Jones and the other was Keyana Kendall, showed up two or three minutes later.

11. Officer Jones asked the manager, is that her and pointed at Plaintiff. After pointing at her, he commanded her "Let's go, Let's go, Let's go." Plaintiff asked for his badge number, and this officer became enraged, covered up his badge, said "you saw it," and started screaming, "Let's go, Let's go, Let's go," continuously. Plaintiff could not respond because the officer kept screaming at her. The officer forcefully grabbed Plaintiff, by her left shoulder, and lifted her out of the chair where she was sitting. Plaintiff's pacemaker was shifted out of place, which required surgery to correct. Then, the officer also pulled Plaintiff's handbag out of her hand, but she pulled it back. Next, the officer kicked her shopping cart, and demanded to know what it was. She said it was the items she was in the process of buying, and she was not finished shopping yet, just resting. At this point, the manager, who had previously done nothing except watch the attack, said "oh, you have not paid for this yet", and offered to take her to the cash register. The police officers left. Plaintiff demanded the officers' names and badge numbers as they walked to the register. Fritz, the manager, disappeared into his office and did not respond when she knocked. Plaintiff waited

patiently, but the manager would not come out to speak with her. Finally. Plaintiff paid for the items in her basket, and walked home, traumatized, on Thanksgiving morning.

DAMAGES

12. As a result of this attack, Plaintiff suffered physical injuries both from the attack itself as well as a later surgery that was needed to repair her pacemaker. She also suffers psychological injuries, specifically post-traumatic stress disorder, loss of enjoyment of life, memory loss, panic attacks, anxiety, constant stress, difficulty leaving her home (which makes it very difficult to keep doctors' appointments), uncontrollable angry outbursts at friends and neighbors, nightmares, and trouble sleeping. For these injuries, Plaintiff claims both compensatory and punitive damages.

FIRST CLAIM FOR RELIEF: ASSAULT AND BATTERY

13. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

14. Due to the force used by the Defendant Officers, Plaintiff was caused to be placed in imminent fear of unwanted and offensive physical contact, and then was actually the victim of unwanted and offensive physical contact.

15. The City of New York is liable for the actions of its employees under the doctrine of *respondeat superior*.

16. As a result of this impermissible conduct, Plaintiff demands judgment against defendants in a sum of money to be determined at trial, including punitive damages.

SECOND CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. 1983

17. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

18. The Defendant Officers used force that was objectively unreasonable and excessive under the Fourth Amendment, while acting under color of law.

19. As a result of this impermissible conduct, Plaintiff demands judgment against defendants in a sum of money to be determined at trial, including punitive damages.

**THIRD CLAIM FOR RELIEF:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

20. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

21. The Defendant Officers were aware that Plaintiff's rights were being violated. The Defendant Officers had an opportunity to intervene and to stop this violation of Plaintiff's rights, but failed to act. This failure to intervene, under color of law, was a violation of Plaintiff's rights.

22. As a result of this impermissible conduct, Plaintiff demands judgment against defendants in a sum of money to be determined at trial, including punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. Costs and interest and attorney's fees;
- d. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 21, 2019

Rickner PLLC

By: /s/

Rob Rickner

233 Broadway Suite 2220
New York, New York 10279
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff